Bk IV 339
2020-21

सत्यमेव जयते

INDIA NON JUDICIAL

Government of Karnataka

Rs. 1,000

e-Stamp

This Document Consist of 12 Page

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2020 - 21

Certificate No.	:	IN-KA10280652889975S
Certificate Issued Date	:	29-Aug-2020 11:24 AM
Account Reference	:	NONACC (FI)/ kaksfcl08/ BANGALORE6/ KA-BA
Unique Doc. Reference	:	SUBIN-KAKAKSFCL08202277384990 67S
Purchased by	:	N H R PRASADA REDDY
Description of Document	:	Article 54 Trust
Description	:	TRUST DEED
Consideration Price (Rs.)	:	0 (Zero)
First Party	:	N H R PRASADA REDDY
Second Party	:	N H MANGA
Stamp Duty Paid By	:	N H R PRASADA REDDY
Stamp Duty Amount(Rs.)	:	1,000 (One Thousand only)

सत्यमेव जयते

AUTHORISED SIGNATORY
UNIVERSAL CREDIT SOUHARDA SAHAKARI (N)

N H R PRASADA REDDY IN-KA10280652889975S RS. 1,000 29-AUG-2020 11:24 AM

Please write or type below this line

TRUST DEED

This DEED OF TRUST made and executed on this Thirty First Day of August Two Thousand and Twenty (31-08-2020)

BY AND BETWEEN

N H R Prasada Reddy, aged 53 years, residing at Villa CE-45, 77 East Divyasree Project, Yemalur Old Airport Road, Main Road, Bengaluru – 560037.

Statutory Alert:
1. The authenticity of this Stamp Certificate should be verified at "www.shcilestamp.com". Any discrepancy in the details on this Certificate and as available on the website renders it invalid.
2. The onus of checking the legitimacy is on the users of the certificate.
3. In case of any discrepancy please inform the Competent Authority.

N.H. Manga

Print Date & Time : 31-08-2020 12:35:11 PM

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ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ : 339

ಇಂದಿರಾನಗರ ದಲ್ಲಿರುವ ಉಪನೋಂದಣಾಧಿಕಾರಿ ಶಿವಾಜಿನಗರ ರವರ ಕಚೇರಿಯಲ್ಲಿ ದಿನಾಂಕ 31-08-2020 ರಂದು 12:27:53 PM ಗಂಟೆಗೆ ಈ ಕೆಳಗೆ ವಿವರಿಸಿದ ಶುಲ್ಕದೊಂದಿಗೆ

ಕ್ರಮ ಸಂಖ್ಯೆ	ವಿವರ	ರೂ. ಪೈ
1	ನೋಂದಣಿ ಶುಲ್ಕ	500.00
2	ಸೇವಾ ಶುಲ್ಕ	420.00
	ಒಟ್ಟು :	920.00

ಶ್ರೀ N H R Prasada Reddy ಇವರಿಂದ ಹಾಜರ ಮಾಡಲ್ಪಟ್ಟಿದೆ

ಹೆಸರು	ಫೋಟೊ	ಹೆಬ್ಬೆಟ್ಟಿನ ಗುರುತು	ಸಹಿ
ಶ್ರೀ N H R Prasada Reddy			

ಸಬ್ ರಜಿಸ್ಟ್ರಾರ
ಹಿರಿಯ ಉಪ ನೋಂದಣಾಧಿಕಾರಿಗಳು
ಇಂದಿರಾನಗರ, ಬೆಂಗಳೂರು

ಬರೆದುಕೊಟ್ಟಿದ್ದಾಗಿ ಒಪ್ಪಿರುತ್ತಾರೆ

ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು	ಫೋಟೊ	ಹೆಬ್ಬೆಟ್ಟಿನ ಗುರುತು	ಸಹಿ
1	N H R Prasada Reddy . (ಬರೆಸಿಕೊಂಡವರು)			
2	N H Manga . (ಬರೆಸಿಕೊಂಡವರು)			N H Manga

ಹಿರಿಯ ಉಪ ನೋಂದಣಾಧಿಕಾರಿಗಳು
ಇಂದಿರಾನಗರ, ಬೆಂಗಳೂರು

hereinafter referred to as the "Author", (which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include his successors and assigns) of the ONE PART;

AND

1. N H Manga, aged 51 years, residing at Villa CE-45, 77 East Divyasree Project, Yemalur Old Airport Road, Main Road, Bengaluru – 560037.

2. N H R Prasada Reddy, aged 53 years, residing at Villa CE-45, 77 East Divyasree Project, Yemalur Old Airport Road, Main Road, Bengaluru – 560037.

hereinafter called as "The Trustees" which expression shall unless repugnant to the context or meaning thereof be deemed to include the survivors or survivor of them and the trustees or trustee for the time being of these presents and their heirs, executors and administrators of the last surviving trustee, their or his assignees of the other part;

WHEREAS the parties hereto of the first part is desirous of creating Public Charitable Educational Trust for imparting quality education for the benefit of public at large and is settling an amount of Rs 50,000(Rupees Fifty Thousand Only) upon the trustees to constitute the corpus of the charitable trust to be held by them for the purposes, intents and objects under the terms and conditions hereinafter contained.

AND WHEREAS each of the parties hereto of the "Other Part" has individually and jointly has agreed to act as Trustees of the Trust, proposed by the party of the first part.

AND WHEREAS nothing contained in this deed shall be deemed to authorize the trustees to do any act which may be any way construed statutory modifications thereof and all activities of the trust shall be carried out with a view to benefit the public at large, without any profit motive and in accordance with the provisions of the Income Tax Act, 1961 as amended from time to time or any statutory modification thereof.

AND WHEREAS the trust is hereby expressly declared to be a public charitable trust and all the provisions of this deed are to be constituted accordingly.

NOW THIS DEED WITNESSETH AS FOLLOWS:

1. **CREATION OF THE TRUST**
   The Author hereby creates a trust today i.e 31 August 2020, with the object and terms & conditions hereinafter mentioned and has this day donated a sum of ₹ 50,000 (Rupees Fifty Thousand Only) to this Trust towards the formation of its corpus, which sum is hereby paid to the Trustees. The Trustees jointly hereby acknowledge the receipt of the same.

2. **NAME OF THE TRUST**
   The name of this Trust shall be "**PEDDA SHIVA REDDY FOUNDATION**".

N·H·Manga

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ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು	ಫೋಟೊ	ಹೆಬ್ಬೆಟ್ಟಿನ ಗುರುತು	ಸಹಿ
3	N H R Prasada Reddy . (ಬರೆಸಿಕೊಂಡವರು)			
4	N H R Prasada Reddy . (ಬರೆದುಕೊಡುವವರು)			

ಹಿರಿಯ ಉಪ ನೋಂದಣಾಧಿಕಾರಿಗಳು
ಇಂದಿರಾನಗರ, ಬೆಂಗಳೂರು

3. REGISTERED OFFICE

The Principle office and working office of this Trust shall be situated at No. 1149, 1st Floor, 22nd Cross, 2nd Sector, HSR Layout, Bengaluru -560102, or such other place as the Trustees may from time to time decide.

4. THE OBJECTS OF THE TRUST

The trust shall pursue the following objects to the condition that the same shall only be for public benefit, with the Trust generally being known as a Public Charitable Educational Trust or a Trust for a charitable purpose as define u/s 2(15) of the I.T. Act. 1961.

Main objective:

The main objective of this trust is to –

a. To promote and establish, run, continue and administer educational and vocational school or institution or college or deemed university and to run the same for educational or vocational purpose, in various places in India, subject to various permissions as required, with a motive to render service to the public.

b. To provide to the public and especially to economically backward students, students, all required extracurricular activities for the furtherance of their faculty to enable them to excel in their studies, fine arts, sports including indoor & outdoor games and to educate them in all possible manner for the furtherance of their basic human values and perform works of charity for those in need throughout India and in case of necessity anywhere in the county through the Trust and in co-ordination with other NGOs.

c. To takeover and administer in educational institute or institution or colleges from time to time as decided by the trustees and to run the same to achieve the objects of the trust mentioned above.

d. To enter into an agreement or joint venture with any other institute, institution or college or university in India or in any other country to achieve the objects of the trust mentioned above.

e. To engage teachers, professors, instructors and experts in various subject and disciplines and conduct to enable the trust to impart efficient coaching & teaching to pupils and students in various subject & discipline vocational interests research work intellectual and other useful pursuits.

f. To establish maintain & to run boarding houses & residential institutions for the students and for those connected with the institution.

g. To admit students for various discipline and subjects and for courses offered by the institution run by this trust and to offer scholarships to the deserving and/ or economically backward students.

h. To render social service activities, aimed at improving the living conditions and economic standard of the students, and their general welfare, in urban and the rural areas through the Trust and in co-ordination with other NGOs whenever required.

N·H·Manga

ಗುರುತಿಸುವವರು

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ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು ಮತ್ತು ವಿಳಾಸ	ಸಹಿ
1	Bhaskar Naidu No 5 HSR Layout Bangalore	Bhaskarnaidu
2	Ramesh HSR Layout, Bangalore	Ramesh

ಹಿರಿಯ ಉಪ ನೋಂದಣಾಧಿಕಾರಿಗಳು
ಇಂದಿರಾನಗರ, ಬೆಂಗಳೂರು

4 ನೇ ಪುಸ್ತಕದ ದಸ್ತಾವೇಜು
ನಂಬರ INR-4-00339-2020-21 ಆಗಿ
ಸಿ.ಡಿ. ನಂಬರ INRD641 ನೇ ದ್ದರಲ್ಲಿ
ದಿನಾಂಕ 31-08-2020 ರಂದು ನೋಂದಾಯಿಸಲಾಗಿದೆ

31/8/20

ಉಪನೋಂದಣಾಧಿಕಾರಿ ಶಿವಾಜಿನಗರ (ಇಂದಿರಾನಗರ)

ಹಿರಿಯ ಉಪ ನೋಂದಣಾಧಿಕಾರಿಗಳು
ಇಂದಿರಾನಗರ, ಬೆಂಗಳೂರು

Designed and Developed by C-DAC, ACTS, Pune

i. To accept donations grants, presents and offerings, in cash or in kind form persons, association of persons, firms, companies, institutions, universities in India & abroad and to deal with the same for the purpose of achieving the objects of the trust mentioned above upon such terms and conditions as trustees may think fit and consistent with the objects of the trust.

j. To charge moderate charges, tuition fees, coaching fees, or any other fees called otherwise to recoup the minimum basic administrative and other occupation expenses incurred in the upkeep and the maintenance of the institutions established, takeover or about to be established under this deed for this trust.

k. To take properties on lease and sub lease such properties to achieve the objects referred hitherto.

Other objects:

a. Relief of the poor – to give financial or other assistance in kind by way of distribution of books, notebooks, clothes, uniforms, or meals for the poor and indigent and to the persons suffer due to natural calamities.

b. To provide funds and/or to conduct feeding programs for the poor and marginalized sectors of society.

c. To establish and develop institutions for the physically handicapped and disabled or mentally retired persons and to provide them education, food, clothing or other help.

5. AREA OF OPERATIONS

The area of operations shall be limited to India.

6. FUNDS

The Trustees may accept donations, grants, subscriptions, aids or contributions from any person, Government, Local authorities or any other charitable institutions, in cash or in kind including immovable property without any incumbrance, but the Trustees shall not accept any receipt with any condition or terms inconsistent with the objects of the Trusts. While applying such receipts to the objects, the Trustees shall respect the directions, if any, by the granter. Any receipt with specific direction to treat the same as part of the corpus of the Trust or separate fund shall be funded accordingly.

7. INVESTMENTS

a. The funds of the Trusts shall be invested in the modes specified under the provisions of Section 13(1) (d) read with section 11(5) of the Income Tax Act, 1961 as amended from time to time.

b. Such investments shall be in the name of Trust.

c. That the trustees shall invest the trust fund, carry on any business with the trust fund and/or enter into partnership on behalf of the trust, as they may deem fit.

d. That the trustees shall manage the trust fund and investments thereof as a prudent man would do the same. They shall recover all outstanding and meet all recurring and other expenses incurred in the upkeep or management thereof.

N.H. Manga

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ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ

Department of Stamps and Registration

ಪ್ರಮಾಣ ಪತ್ರ

1957 ರ ಕರ್ನಾಟಕ ಮುದ್ರಾಂಕ ಕಾಯ್ದೆಯ ಕಲಂ 10 ಎ ಅಡಿಯಲ್ಲಿಯ ಪ್ರಮಾಣ ಪತ್ರ

ಶ್ರೀ. N H R Prasada Reddy , ಇವರು 2500.00 ರೂಪಾಯಿಗಳನ್ನು ನಿಗದಿತ ಮುದ್ರಾಂಕ ಶುಲ್ಕವಾಗಿ ಪಾವತಿಸಿರುವದನ್ನು ದೃಡಿಕರಿಸಲಾಗಿದೆ

ಪ್ರಕಾರ	ಮೊತ್ತ (ರೂ.)	ಹಣದ ಪಾವತಿಯ ವಿವರ
ನಗದು ರೂಪ	2500.00	Paid in cash
ಒಟ್ಟು :	2500.00	

ಸ್ಥಳ : ಇಂದಿರಾನಗರ

ದಿನಾಂಕ : 31/08/2020

ಉಪ-ನೋಂದಣಿ ಮತ್ತು ಮುದ್ರಾಂಕ ಅಧಿಕಾರಿ
ಹಿರಿಯ ಉಪ ನೋಂದಣಾಧಿಕಾರಿಗಳು
(ಇಂದಿರಾನಗರ)
ಇಂದಿರಾನಗರ, ಬೆಂಗಳೂರು

Designed and Developed by C- DAC Pune.

8. UTILISATION OF FUNDS

The funds and the income of the trusts shall be solely utilized for its objects and no portion of it shall be utilized for payments to the trustees by way of profits, interest, dividends or by whatever name called.

9. POWER OF TRUSTEES

That the trustees shall have the following powers:

a. To manage all the assets and/or properties of the trust including the conduct of business

b. To appoint employees and to settle the terms of their service, remuneration, and termination;

c. To look into the management of the trust;

d. To invest the funds of the trust as specified earlier or in the purchase of movable or immovable properties;

e. To sell, alter, vary, transpose or otherwise dispose or alienate the trust properties or any investment representing the same for consideration and to reinvest the same;

f. To apply the whole or part of the income of the trust or accumulation thereof or whole or the part of the corpus of the trust for any object or more of the objects of the trust as the trustees may decide from time to time.

g. To pledge or mortgage the trust properties for raising loans;

h. To open the bank accounts in the name and on behalf of the trust and to operate the same;

i. To enter into a partnership on behalf of the trust with any other party or parties;

j. To pay all charges, impositions and other outgoings payable in respect of the trust properties and also to pay all cost of the incidental to the administration and management of the trust properties;

k. To file suit on behalf of the trust and to refer to arbitration all actions proceedings and disputes touching the trust properties and to compromise and compound the suits filed;

l. To accept any gift, donation or contribution in cash or in kind from anyone for the objects of the trust;

m. To seek legal opinion of lawyers and/or Chartered Accountants as and when required;

n. To nominate their representatives for any of the aforesaid purposes.

o. To establish an office or offices of the trust hereby created in any part of India as they may from time to time decide.

N.H. Manga

p. To enter into contracts for buying and selling any property moveable or immoveable or any other articles and things and for construction of buildings and structure with any building contractor or builder or developer.

q. The trustees shall have power with the consent of any prescribed authority appointed by the Government, to modify, add to, alter any of the objects of this trust or the powers conferred on them or and/or the other provisions contained herein, without affecting the basic structure of this deed and the trust created thereby.

10. APPOINTMENT, RETIREMENT, AND TERMINATION OF TRUSTEES

a. The trustees may appoint anyone or more of them as Managing trustee or trustees who will be responsible to look after the day to day administrative matters of the trust, in consonance with the policy or discretions given by the Trustees from time to time.

b. The number of the trustees shall not be less than two but not more than eleven.

c. Any of the trustees may retire on giving one month's notice in writing to the other trustee(s).

d. If any trustee dies or retires or becomes incapable or unfit to act, the continuing or surviving trustee or trustees shall appoint a successor in the place of such trustee.

e. If at any time the number of the trustees is less than two, the existing trustee shall appoint one or more trustees.

f. The entire trustee and the trustees who will be adopted by the consent of all the trustees shall constitute a Board of Trustees.

g. Upon the appointment of a new trustee, the trust properties shall vest in the new trustee jointly with the continuing or surviving trustees, with the duties and power of the trustees set out hereinabove in this deed.

11. MEETINGS

a. In all the meetings of the trust, two trustees will form a quorum provided, that if the number of the trustees falls below two, then for the purpose of appointment a trustee, there will be no quorum.

b. Any resolution passed without any meeting shall be invalid. But a resolution passed by way of circulation and evidenced in writing under the hands of two third of the total number of trustees shall be as valid and effectual as a resolution duly passed at a meeting of the trustees.

c. A person shall cease to be a trustee if;

- he/she without prior approval of the board, does not attend three consecutive meetings or does not attend three meetings in a calendar year.

- he/she is requested to resign by all or majority of the trustees.

- he/she acts or does anything prejudicial to the objects of the trust in the opinion of all or majority of the trustees.

N·H·Manga

12. OTHERS TERMS FOR TRUSTEES

a. Any trustee engaged in any profession or business shall be entitled to charge and receive all usual professional and other charges for the business done by him or his firm as such in relation to the trust.

b. The trustees shall apply and try to obtain all concessions, benefits, and allowances as are available, in law in the matter of taxation, investments and exemptions.

c. If the trustee receives any donation on any special terms and conditions, such donations shall be kept invested according to the terms and conditions if any in respect thereof and they shall keep a separate account in respect thereof and records in respect of the utilization or application of the income. The trustees shall not accept any donation, the terms, and conditions of which are contrary to or inconsistent with the objects of this trust.

d. Every trustee will be at liberty to nominate or appoint attorneys or agents and to delegate all or any of the duties and powers vested in him to such attorney or agent and to remove such attorney or agent and reappoint other or others in his place.

e. No trustee shall be responsible or liable for any loss or any act of omission or commission by his constituted attorney or agent or employees or other trustees unless occasioned by his willful neglect or default.

f. In all cases of difference of opinion amongst the Trustee as to whether a particular act should be done or omitted to be done in the execution of the trusts hereof or as to the powers and authorities herein contained or as to the true intent and meaning of any of the clauses of trusts thereof the same shall be disposed of and dealt within accordance with the opinion of the majority which shall be final and conclusive. In case of an equality of votes, the trustee senior most in age shall have a second or casting vote.

13. BANKING ACCOUNT

All income, subscription and pecuniary donations for the general purposes of the Trust and the income, investments and all other money from time to time forming part of the general revenue of the Trust shall on the same being received be paid into a banking account with any scheduled bank for the purpose of the Trust. The bank accounts shall be operated by such person/s as the trustees herein may mutually agree upon from time to time.

14. ACCOUNTS AND AUDIT

The Trustee shall keep proper books of account of all the assets, liabilities and income and expenditure of the Trust and shall prepare an Income and Expenditure Account and Balance Sheet for every year as on the last day of March or as on such day under any law as may be applicable for the time being in force.

The accounts of every year shall be audited by a Chartered Accountant or a firm of Chartered Accountants who shall be appointed for that purpose by the Trustees and the audited accounts shall be placed and be approved at a meeting of the Trustees, which shall be held before the end of six months of the succeeding year.

N·H·Mavga

15. AMENDMENTS

No amendments to the Trust Deed shall be made which may prove to be repugnant to the provisions of Section 2(15), 11, 12, 13 and 80G of The Income Tax Act, 1961 as amended from time to time".

FURTHER, NO AMENDMENT SHALL BE CARRIED OUT WITHOUT THE PRIOR APPROVAL OF THE COMMISSIONER OF INCOME TAX

16. The Trust formed shall be irrevocable.

17. If for any reason this trust fails or it is resolved unanimously to dissolve or to wind up this trust, then the assets remaining as on the date of dissolution shall under no circumstances be distributed amongst the Trustees but the same shall be transferred to other Charitable Trust whose objects are similar to those of this Trust and enjoys recognition under section 80 G of the Income Tax Act, 1961 as amended from time to time or any other law as may be applicable for the time being in force.

18. The benefits of the trust shall be open to general public irrespective of caste, creed or religion.

19. The Trustees shall be indemnified against all losses and liabilities incurred by them in the execution of the Trust and shall have a lien over the funds and properties of the Trust for such indemnity.

20. In respect of matters not specifically provided herein, the Trust shall be governed by the provisions of the Income Tax Act, 1961 as amended from time to time or any other law for the time being in force.

IN WITNESS WHEREOF the Authors and the trustees have set their respective hands on the day, month and the year first hereinabove written.

Witnesses:
In the presence of

1. Bhaskaranadee
S/o B.V. Venkatesh
H.SR Layout
Bangalore
2. Ramesh (Ramesh)
S/o Krishnappa
H.S.R Layout
Bangalore

Signed and delivered by the within named authors

N H R Prasada Reddy

Signed and delivered by the within named trustees

N H Manga

N H R Prasada Reddy